

Defendant THE PIGGY BACKER COMPANY, INC. shall be deemed to have admitted all propounded requests for admission set forth in Requests for Admission (Set Two). Plaintiff is additionally awarded \$510 as reasonable costs to be paid by Defendant in 30 days.

The court appreciates that while Plaintiff technically did not have a duty to meet and confer when it did not receive responses to RFA (Set Two) that counsel nevertheless did so. That is the type of practice all attorneys should adopt. Defendant's opposition promising some future performance at some unknown date does not render Plaintiff's motion moot.

Moving party to submit an order after hearing consistent with the requirements of California Rules of Court, rule 3.1312.

In the Matter of Default Servicing Corporation RE: 1601 Flamingo Dr. Fairfield, CA 94533

Case No. CU25-06417

Hearing re Surplus Funds

TENTATIVE RULING:

Interested persons/claimant(s) to appear.

LARRY WILLIAMS III v. CITY OF SUISUN CITY AND JAMIR R. COLLINS

Case No. CU25-08849

Defendants' Motions for Leave to File Amended Answers

TENTATIVE RULING

Defendants CITY OF SUISUN CITY ("SUISUN") and JAMIR R. COLLINS ("COLLINS") move for leave to file amended answers. Both parties declare that they have recently come to understand the legal significance of facts arising after the filing of the operative pleadings and thus now move to amend.

The trial court may, in its discretion, allow amendments to pleadings "in furtherance of justice." (Code Civ. Proc., § 473, subd. (a)(1).) Policy encourages liberality in allowing amendment. (See *Frost v. Witter* (1901) 132 Cal. 421, 424; *Cardenas v. Ellston* (1968) 259 Cal.App.2d 232; *Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412.) Indeed, if the motion to amend is timely made and granting the motion will not prejudice the opposing party, it is error to refuse permission to amend where the refusal also results in a party being denied the right to assert a meritorious action or defense. (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.)